

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

JOINT MOTION TO EXTEND DEADLINES

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc.¹ (“BBBY”) and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY, collectively with Evergreen, the “Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby file this Joint Motion to Extend Deadlines (“Motion”) and in support thereof state that good cause for the requested extension exists, as follows:

1. On August 16, 2024, Administrative Law Judge Chintella (the “Presiding Officer”) entered a Scheduling Order containing the Schedule as follows:

- August 23, 2024 Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories
- September 27, 2024 Parties to serve objections and initial responses to initial RFPs

¹ Bed Bath & Beyond Inc. filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023 by and through which Bed Bath & Beyond Inc. changed its corporate name to 20230930-DK-Butterfly-1, Inc.

- September 27, 2024 Parties to serve objections to and initial responses to initial interrogatories
- October 25, 2024 Submission of any unresolved disputes concerning initial RFPs and interrogatories
- December 13, 2024 Parties substantially complete production of documents and ESI in response to initial RFPs.
- January 10, 2025 Parties file Joint Status Report.
- February 28, 2025 Parties complete depositions of fact witnesses.
- February 28, 2025 Last day to serve interrogatories, requests for admission, and RFPs.
- April 4, 2025 Disclosure of parties' initial expert reports, if any.
- May 9, 2025 Disclosure of parties' rebuttal expert reports, if any.
- June 6, 2025 Complete expert depositions.
- June 6, 2025 Close of discovery.
- July 18, 2025 Complainant's brief, proposed findings of fact, and appendix.
- August 29, 2025 Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
- September 19, 2025 Complainant's reply brief and responses to proposed findings of fact.

2. The Parties remain respectful of the deadlines set forth in the Schedule and have complied with the first three deadlines set in the Schedule. This proceeding, however, involves a significant claim for reparations (in excess of \$85,000,000) and so, accordingly, requires and deserves discovery commensurate with the demand. The Parties have exchanged extensive requests for production of documents (as well as other discovery requests) and further engaged in responses and objections to those requests, and it has become clear to the Parties that such discovery cannot reasonably be accomplished within the Schedule.

3. The document requests here are especially expansive because they include not just relations between Complainant and Respondent, but also between each of them and a substantial number of third parties.

DISCOVERY EFFORTS TO DATE

4. As of the date of this Motion, Complainant and Respondents have negotiated both a confidentiality protocol and a protocol regarding electronically stored information and are

prepared to file them with the court in short order reflecting the Parties' ongoing collaborative efforts to proceed with discovery expeditiously in this case. The Parties have served initial RFPs and interrogatories and have served objections and initial responses to the initial RFPs and interrogatories. The Parties have met and conferred regarding open issues. Both the Complainant and Respondents however require additional time in order to review the substantial number of documents to be produced in discovery. While the parties do not have any discovery disputes at this time, the parties may have additional concerns that arise as they review and process the available documents and ESI.

RELIEF REQUESTED

5. As a result of the necessarily large number of custodians and the significant time-period implicated by the Parties' claims and defenses in this action, and despite efforts by the Parties to limit the scope of discovery and their respective burdens, the Parties nonetheless anticipate a large volume of documents (many hundreds of thousands) to be reviewed for relevance, attorney-client privilege, and confidentiality prior to production and prior to analysis for the purpose of taking depositions. The Parties also anticipate requesting further custodians for additional documents following the first review of documents produced.

6. As previously stated, apart from the normal difficulties of getting from here to there, this case is subject to particular difficulties. These include: (i) the complexity of the matter; (ii) the need to include Complainant's bankruptcy counsel in making decisions, and other challenges presented by Complainant's bankruptcy status; and (iii) ongoing discussions relating to interrogatories and requests for documents. The current schedule would preclude the Parties from taking meaningful discovery in the context of this proceeding, so they would not be able to present their claims and defenses adequately in their respective briefs.

7. The Parties also have conferred extensively to arrive at the proposed schedule, including holding a meet and confer on October 22, 2024 to discuss.

8. Given the scope of the Complaint, and the challenges posed by the likely large number of third-party depositions, the Parties believe it would be most effective and efficient to conduct fact depositions on the basis of a substantially complete documentary record, and not to be forced to take deposition testimony without the benefit of first having received and reviewed relevant documents and ESI for potential use in such depositions.

9. Given that the enormous volume of documents collected to date subject to the parties ESI Protocol, the ongoing nature of Respondent's document review and production, and what will likely be at least two dozen fact depositions, the Parties respectfully and jointly request an extended discovery schedule as follows to permit completion of document review, allow for review and preparation of documents by both sides for depositions, and appropriate expert reports which will be detailed, significant, and necessarily depend on the facts of the case as brought out in discovery:

- March 13, 2025 Parties substantially complete production of documents and ESI in response to initial RFPs.
- April 10, 2025 Parties file Joint Status Report.
- May 29, 2025 Parties complete depositions of fact witnesses.
- May 29, 2025 Last day to serve interrogatories, requests for admission, and RFPs.
- July 3, 2025 Disclosure of parties' initial expert reports, if any.
- August 7, 2025 Disclosure of parties' rebuttal expert reports, if any.
- September 4, 2025 Complete expert depositions.
- September 4, 2025 Close of discovery.
- October 16, 2025 Complainant's brief, proposed findings of fact, and appendix.
- November 27, 2025 Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
- December 18, 2025 Complainant's reply brief and responses to proposed findings of fact.

10. The parties believe that the most comparable precedent regarding the propriety of the relief sought is an ongoing action in which Complainant has brought similar claims against another Respondent, *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited* (Docket No. 23-02). In that case, involving similar legal claims and a similar volume of discovery, Chief Administrative Law Judge Wirth has granted an extension from the original close of discovery of October 19, 2023 to a presently-ordered close of discovery of November 10, 2024—an extension of 388 days, or slightly greater than one year. The Parties in the present action originally proposed an initial discovery timeline with an initial close of discovery of June 6, 2025. The presently-requested extension would extent this initial deadline by 90 days—298 days fewer than the total extensions granted by Chief Administrative Law Judge Wirth as reflected in her August 23, 2024 Fourth Revised Scheduling Order in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*.

11. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly and to the extent possible. Further, the parties have decompressed post-production discovery, including deposition dates and expert reports and depositions, to allow for a realistic period to review the large volumes of produced material, negotiate further stipulations of fact, where appropriate, and conduct depositions and expert discovery.

12. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues related to the collection and production of documents located abroad or in the custody of non-parties, or to the need for

testimony from non-parties (including Complainant's former employees) or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the Parties wish to note such possible issues for the Presiding Officer now.

13. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

14. The anticipated volume of production material, which may include up to multiple hundreds of thousands of documents and terabytes of data, is in line with the productions within the *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited* and the Parties believe merits similar treatment.

15. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Joint Motion to Extend Deadlines be granted.

Dated: October 24, 2024

Respectfully submitted,

HUTH REYNOLDS LLP

BETANCOURT, GRECO & EVANS LLC

/s/ Mohini P.B. Rarrick

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
Mohini P.B. Rarrick
(818) 235-9753
mpriya@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., formerly known as Bed Bath
& Beyond Inc.*

/s/ John Greco

Ronald Betancourt, Esq.
rbetancourt@bge-law.com
John Greco, Esq.
jgreco@bge-law.com
Alton J. Evans, Esq.
aevans@bge-law.com
Clayton J. Vignocchi, Esq.
cvignocchi@bge-law.com
151 Bodman Place - Suite 200
Red Bank, New Jersey 07701
732-530-4646

*Counsel for Evergreen Line Joint Service
Agreement (FMC # 011982) et al.*

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Evergreen Line Joint Service Agreement (FMC # 011982) et al. by emailing a copy of the document to their counsel of record listed below:

Ronald Betancourt, Esq.
rbetancourt@bge-law.com
John Greco, Esq.
jgreco@bge-law.com
Alton J. Evans, Esq.
aevans@bge-law.com
Clayton J. Vignocchi, Esq.
cvignocchi@bge-law.com
151 Bodman Place - Suite 200
Red Bank, New Jersey 07701
732-530-4646

Dated: October 24, 2024

/s/ Mohini P.B. Rarrick

Mohini P.B. Rarrick
Counsel for Complainant
20230930-DK-Butterfly-1, Inc.